



Online Service Agreement

Terms and Conditions

[Acclaris Terms and Conditions](#)

[Privacy Policy](#)

Our Commitment to Privacy

Acclaris believes that privacy is important to the success and use of the Internet. This statement sets forth the Acclaris Privacy Policy and describes the practices that Acclaris will follow with respect to the privacy of users of this site.

What is "Personally Identifiable Information?"

"Personally identifiable information" is information about you including but not limited to name, date of birth, address, email address, user ID, telephone number, and social security number.

How is information collected, used, and disclosed?

To enhance your site visit or have the ability to do follow up with you after your visit, we may request that you voluntarily supply us with information. This information may include your email address, street address, telephone number or other Personally Identifiable Information.

If you have voluntarily provided information, you consented to the collection and use of your personally identifiable information as described in this Privacy Policy. We do not sell or rent Personally Identifiable Information collected through this site to anyone. Acclaris may provide aggregate statistics about visitors to our sites, such as volume, traffic patterns, and related site information to reputable third-party vendors, but these statistics will include no personally identifiable information. Acclaris may also disclose information in special cases when we have a good faith belief that such action is necessary to: (a) conform to legal requirements or comply with legal process; (b) protect and defend our rights or property; or (c) act to protect the interests of our users or others.

IP Address

Your IP address is a number that is assigned to your computer by your Internet Service Provider (ISP). An IP address may automatically be identified and logged in our server log files whenever you, as a user, access the Services. This log may include the time and the page(s) visited. We use IP addresses to calculate usage levels, derive your approximate location, diagnose server problems, and administer the

Services. We do not use IP addresses for identification or direct marketing purposes. Collecting IP addresses is a standard industry practice and is done automatically by many websites, applications, and other services.

How We Protect Your Information

We exercise great care to protect your personally identifiable information. This includes, among other things, using industry standard techniques such as firewalls and encryption. Internally, we will restrict access to your Personally Identifiable Information to those who require it to provide services to you. We may share the Personally Identifiable Information that we collect with the following entities:

Acclaris corporate affiliates, including internal service providers (For example: printing operation and data processing company)

Unaffiliated service providers (For example: printing and mailing companies and other entities who may provide services under Acclaris direction)

Government agencies, other regulatory bodies and law enforcement officials (For example these entities may request personally identifiable information for tax purposes, or reporting suspicious transactions)

Other organizations, as permitted by law (For example in the case of fraud prevention)

How can you help protect your information?

If you are using an Acclaris web site for which you registered and chose a password, please do not divulge your password to anyone. We will never ask you for your password in an unsolicited phone call or in an unsolicited e-mail. Please remember to sign out of the registered site and close your browser window when you have finished your work. This is to ensure that others cannot access your personally identifiable information and correspondence if others have access to your computer.

We may contact you via mail, email or telephone to verify that any accounts established for your use are still active. Your response to these inquiries will help us prevent unintended access to your information. If your account information is incomplete, inaccurate or not current, please email, call or write to us at the telephone numbers or appropriate address for changes listed on your statements, records, online or other account materials.

Updates to this Privacy Policy

This Acclaris Privacy Policy is subject to change. Please review it periodically. If we make changes to the Acclaris Privacy Policy, we will revise the "Last Updated" date at the top of the Policy. Any changes to this Policy will become effective when we post the revised Policy on the Site. Your use of the site following these changes means that you accept the revised Policy.

Protecting children's privacy online

The site is not directed to individuals under the age of thirteen (13), and we request that these individuals do not provide personally identifiable information through the site. We do not knowingly collect information from children under 13 without parental consent. Visit the Federal Trade Commission website for more information about the Children's Online Privacy Protection Act (COPPA).

HSA Adoption Agreement

By opening and/or maintaining a Health Savings Account (HSA) with Acclaris, Inc., I agree to all of the terms and conditions that accompany the HSA and acknowledge that they are binding on me, including this HSA Adoption Agreement, the Acclaris Custodial Agreement, the Participant Portal Privacy Policy and the Privacy Notice, as well as any other documents that may be provided to me. In addition, I agree to each of the following terms:

- I understand that I must be eligible for an HSA and must meet the eligibility requirements for deposits made to my HSA, and I represent that I am eligible for an HSA and qualify to make deposits to this account.
- I authorize Acclaris, Inc. to provide information about my HSA, including my account number, to my employer and those acting on behalf of my employer or Acclaris, Inc., in connection with the establishment and maintenance of my HSA. Likewise, I acknowledge that the employer and all others acting on behalf of my employer (if applicable), may provide information on my behalf to establish and maintain my HSA.
- I further authorize my employer and its designee to take such action deemed necessary and appropriate by my employer to administer my HSA, including but not limited to, effectuating deposits and correcting errors where necessary. I acknowledge that my employer may pay some or all of the fees for this HSA, as outlined in the Schedule of Fees to be sent once the account is established, and that I will become responsible for paying any such fees if my employment is terminated. Finally, I acknowledge that my HSA is not sponsored by my employer and is not an employee welfare benefit plan subject to ERISA.
- I acknowledge that I will be liable for use of the healthcare Visa™ Debit Card issued to me with the establishment of the HSA. I further acknowledge that any use of my healthcare Visa™ Debit Card will be subject to the terms of the Cardholder Agreement, which will be provided to me at the time the Visa™ Debit Card is issued to me.
- If I decide to make self-directed investments with my HSA, I acknowledge that I will have to first agree to the Investment Agreement document, which will be provided to me at the time I elect to make investments. I understand that Acclaris, Inc. does not provide any investment advice.
- If I have an existing HSA balance with another HSA provider, I understand and agree that my existing balance may be transferred to Acclaris, Inc. In such case, I understand that any investment

elections that I may have made through the previous HSA provider will be liquidated as part of the transfer, and that if, after the transfer period, I desire to re-invest all or part of my HSA balance and am eligible to do so, I must affirmatively self-direct those investments in accordance with the Investment Agreement. I acknowledge that my balance will not be invested before my self-directed investments are implemented, and I understand that my self-directed investments may incur losses for which Acclaris, Inc. is not responsible.

I understand that if I do not agree to all of these terms and conditions, I should not open an Acclaris HSA and/or should close my Acclaris HSA.



All rights reserved. [Our Privacy Commitment](#)

Acclaris, Inc. offers all account services and is the HSA custodian.